

IN THE CIRCUIT COURT OF THE THIRTEENTH JUDICIAL CIRCUIT
IN AND FOR HILLSBOROUGH COUNTY, FLORIDA
FAMILY LAW DIVISION

IN RE: THE MARRIAGE OF:

SARAH. S. HANSON,

Case No.: 24-DR-001150 (D)

Petitioner/Wife,

and

CHRISTOPHER A. HANSON,

Respondent/Husband.

_____/

**NON-PARTY VIVIAN CORTES HODZ'S OBJECTION TO SUBPOENA AND
MOTION FOR PROTECTIVE ORDER**

COMES NOW, Vivian Cortes Hodz, by and through her undersigned counsel, and files this Objection to Subpoena and Motion for Protective Order, and states the following:

1. The Husband issued and served a Subpoena to Vivian Cortes Hodz, to appear at a hearing in this matter on May 29, 2026. The subpoena includes a "Schedule A" which requests the following documents be produced at the May 29, 2026 hearing:
 - a. The complete client file for Christopher Hanson regarding case No. 2024-DR-001150 including all internal notes, drafts, strategy memoranda, billing records, and communications.
 - b. All communications (e-mails, text messages, portal messages, and notes of telephone calls) between Vivian Hodz, Jennifer Bracke, or any Cortes Hodz staff member and Scott Paul Davis, Kristin Kadaj, or any Davis Law/Hunter Law Group staff member from October 1, 2024 to the present.
 - c. All internal office notes, memoranda, or correspondence detailing the specific, unprivileged reasons for your emergency motion to withdraw as counsel for Christopher Hanson.

- d. All communications, notes, or memoranda referencing or documenting any statement by Scott Paul Davis indicating an intent to make the litigation “ugly and expensive” or a refusal to cooperate with mandatory financial disclosure.
 - e. Your complete response and all communications with The Florida Bar concerning The Florida Bar File No. 2026-10,601(13E) (the complaint by Christopher Hanson against you), including all correspondence to or from Bar counsel or staff regarding that file.
2. A witness to whom a subpoena is directed has standing to question the subpoena. *See State Dep't of Highway Safety & Motor Vehicles v. State Career Serv. Comm'n*, 322 So. 2d 64 (Fla. 1st DCA 1975); *Kridos v. Vinskus*, 483 So. 2d 727 (Fla. 4th DCA 1985).
3. Florida Family Law Rule 12.410 provides for the issuance of subpoenas for testimony before the court, for production of tangible evidence and for taking of depositions. Florida Family Law Rule 12.410(c) provides that a subpoena may also command a person to whom it is directed to produce documents or tangible things designated therein “but the court, on motion made promptly and in any event at or before the time specified in the subpoena for compliance with it, may quash or modify the subpoena if it is unreasonable and oppressive.”
4. Florida Family Law Rule 12.280(d) provides “[o]n motion by a party or person from whom discovery is sought, and for good cause shown, the court in which the action is pending may make any order to protect a party or person from annoyance, embarrassment, oppression or undue burden or expense that justice requires, including one or more of the following . . . that the discovery not be had . . . that the scope of the discovery be limited to certain matters”
5. The trial court possesses broad discretion in the treatment of discovery problems through the employment of protective orders. *See Waite v. Wellington Boats, Inc.*, 459

So. 2d 425, 426 (Fla. 1st DCA 1984); see also *Towers v. City of Longwood*, 960 So. 2d 845, 848 (Fla. 5th DCA 2007). In examining a discovery request and determining whether the discovery should be permitted or whether a protective order entered, there must be a nexus between the information requested and the matter before the court. See *McEnany v. Ryan*, 44 So.3d 245, 247 (Fla. 4th DCA 2010).

6. In deciding whether to permit a discovery request or enter a protective order, the court “must balance the competing interest that would be served by granting discovery or by denying it.” *Rasmussen v. South Florida Blood Service, Inc.* 500 So.2d 533, 536 (Fla. 1987). “Thus, the discovery rules provide a framework for judicial analysis of challenges to discovery on the basis that the discovery will result in undue invasion of privacy. This framework allows for broad discovery in order to advance the state's important interest in the fair and efficient resolution of disputes while at the same time providing protective measures to minimize the impact of discovery on competing privacy interests.” *Id.* In other words, a court must look at and balance the importance of allowing or denying the requested discovery on a case-by-case basis.
7. First and foremost, the subpoena to Ms. Hodz, along with the demand therein that she produces certain records at the May 29, 2026 hearing, continues a pattern of harassment and threats by the Husband.
8. The Husband, who is a licensed member of the Florida Bar, was notified on Monday, December 2, 2024, via email that circumstances existed that required Ms. Hodz to terminate representation of the Husband. Said termination followed and was a direct result of the Husband sending communication directly to counsel for the

Wife on Monday, November 25, 2024, and his overall conduct toward Ms. Hodz.

9. Before filing an Expedited Motion to Withdraw on December 11, 2024, on December 3, 2024, Ms. Hodz filed a Motion to Withdraw and same was set for hearing on January 6, 2025. Following the filing of the Motion to Withdraw, the Husband continued to send email communications directly to counsel for the Wife, Scott Davis, Esquire and requested responses from Attorney Davis. Mr. Davis indicated that he will not communicate with the Husband while he is represented. The Husband then continued to send persistent email communications directly to Mr. Davis following the filing of the Motion to Withdraw and sought responses from Mr. Davis on numerous matters.
10. In addition, following the filing of the Motion to Withdraw the Husband continued to send persistent email communications to Ms. Hodz requesting that additional substantive work be performed on his behalf after it had already been communicated clearly and continuously to the Husband via email that due to the existing circumstances and the pending Motion to Withdraw that Ms. Hodz would not be taking any further affirmative actions on his behalf unless necessary to protect the interests of the Husband.
11. In response to the January 6, 2025 hearing being set on the Motion to Withdraw the Husband requested an in-person hearing with a minimum of one hour reserved in numerous and persistent communications to both Attorney Davis and Ms. Hodz.
12. The Husband's actions necessitated Ms. Hodz filing an Expedited Motion to Withdraw which detailed the above and set forth that Rule 4-1.16(b) of the Rules Regulating the Florida Bar provides that a lawyer may withdraw if "the client insists

upon taking action that the lawyer considers repugnant, imprudent, or with which the lawyer has a fundamental disagreement” and “if the representation . . . has been rendered unreasonably difficult by the client.”

13. Specifically, the Husband’s actions necessitated Ms. Hodz seeking to withdraw pursuant to Rule 4-1.16 as the Husband’s actions and statements as to continued interim representation pending the hearing on the Motion to Withdraw and the allegations made in writing against both Mr. Davis and Ms. Hodz as to delay, prejudice and detrimental impact to his matter were distressful and concerning to the point that the it necessitated the Court’s immediate attention.
14. A hearing was set on the Expedited Motion to Withdraw for December 13, 2024 and a Notice of Hearing was filed. The Husband appeared at the December 13, 2024 hearing and at the conclusion of the hearing the Court granted Ms. Hodz’s request to withdraw and entered an order granting same on December 16, 2024. The Husband then filed a Motion for Rehearing complaining that the Order Granting Motion to Withdraw did not include any findings on the reasons for withdrawal or the impact withdrawal would have on the Husband’s case. Amongst other complaints, the Husband also complained that one (1) day notice on a motion to withdraw deprived him of his due process rights. Astonishingly, the Husband’s Motion for Rehearing sought to compel Ms. Hodz to continue to represent and work on behalf of the Husband.
15. The Court granted a hearing on the Husband’s Motion for Rehearing and same occurred on January 9, 2025 and on January 13, 2025 the Court entered an Order on Husband’s Motion for Rehearing on Order Granting Ms. Hodz Withdraw wherein

the Court referenced Rule 4-1.16 and held that the Husband failed to establish a legal basis for the Court to deny the Expedited Motion to Withdraw.

16. Since the January 13, 2025 Order on Husband's Motion for Rehearing on Order Granting Ms. Hodz Withdraw, the Husband has filed a bar complaint with the Florida Bar Association which remains pending, has threatened to sue Ms. Hodz, the undersigned, and their law firm, and has now subpoenaed Ms. Hodz to the May 29, 2026 hearing, that based on the Notice of Hearing and the matters to be heard, it appears that Ms. Hodz has been subpoenaed for the sole purpose of annoyance and harassment as any matter Ms. Hodz would have knowledge of appears to be irrelevant to the matters set for hearing. Ms. Hodz objects to her appearance on this basis.

17. Additionally, Ms. Hodz objects to the Husband's demand for production of documents as set forth in the subpoena for a multitude of reasons.

18. First, the subpoena is directed to Ms. Hodz in her individual capacity and not to the law firm, Cortes Hodz Family Law & Mediation, P.A. which maintains the records sought. However, setting this issue aside, the records that are requested are sought for the purpose of annoyance and to harass Ms. Hodz. Additionally, the requests are unduly burdensome and appear irrelevant to the matters set for hearing on May 29, 2026.

19. Taking each request for documents in turn and beginning with the request that a complete file be produced, the Husband was already provided a copy of his file. In fact, the Husband acknowledged he received a copy of his file in his Motion for Rehearing. The Husband also has all billing records and copies of all

communications he had with Ms. Hodz and anyone at Cortes Hodz Family Law & Mediation, P.A. No other items that are responsive to this request exist and requiring Ms. Hodz to again produce what has already been provided to the Husband is unduly burdensome and done for the sole purpose to annoy and harass her.

20. The Husband's subpoena also seeks all communications of any kind and without any limitation between Ms. Hodz, Jennifer Bracke (Ms. Hodz's legal assistant), or any staff member of Cortes Hodz Family Law & Mediation, P.A. and Scott Paul Davis, Kristin Kadaj, or any Davis Law/Hunter Law Group staff member from October 1, 2024 to the present. The request on its face is overly broad and unduly burdensome. To this end, the Husband's request is not limited to this matter and would encompass any matter and any subject. A request for documents should not become a search warrant, requiring a witness to produce broad categories of items which the party can search to find what may be wanted. The desired documents, books or papers should be designated with sufficient particularity as to affirmatively suggest their existence and materiality and so describe them that any reasonable person can identify them. *See Palmer v. Servis*, 393 So. 2d 653, (Fla. 5th DCA 1981). The Husband's request for all communications is nothing more than a search warrant requiring Ms. Hodz to produce documents to allow the Husband to search for what he may want. Furthermore, the request for all communications violates privacy interests for which there is no compelling reason that would warrant production. The potential for invasion of privacy is inherent in the litigation process." *Rasmussen v. South Florida Blood Service, Inc.* 500 So.2d 533, 535 (Fla. 1987). "Under discovery

rules, any nonprivileged matter that is relevant to the subject matter of the action is discoverable.” *Id.* “The right to privacy does not confer a complete immunity from governmental regulation and will yield to compelling governmental interests.” *Winfield v. Division of Pari-Mutuel Wagering, Dept. of Business Regulation*, 477 So.2d 544, 547 (Fla. 1985). Before the right to privacy attaches, a reasonable expectation of privacy must exist. *Id.* Ms. Hodz and Cortes Hodz Family Law & Mediation, P.A. maintain a privacy interest in the information sought by the Husband and the privacy interest is furthered by the overbroad nature of the Husband’s request.

21. The Husband’s request for all internal office notes, memoranda, or correspondence detailing the specific, unprivileged reasons for Ms. Hodz’s emergency motion to withdraw as counsel for Christopher Hanson also appears to be irrelevant to the matters set for hearing on May 29, 2026. First, there is no emergency motion to withdraw that was filed in this case so it is assumed that the Husband is referring to the Expedited to Motion to Withdraw. Regardless, the reasons for Ms. Hodz’s withdrawal are set forth in the Expedited Motion to Withdraw which specifically references Rule 4-1.16(b) of the Rules Regulating the Florida Bar and that a lawyer may withdraw if “the client insists upon taking action that the lawyer considers repugnant, imprudent, or with which the lawyer has a fundamental disagreement” and “if the representation . . . has been rendered unreasonably difficult by the client.” The Husband insisted on taking actions for which Ms. Hodz had a fundamental disagreement and continued representation was rendered difficult by the Husband. In addition, and although the Husband’s requests seeks unprivileged information, Ms. Hodz asserts that any notes, memoranda, or correspondence on why she sought

to withdraw other than what was included in the motion or argued at the hearing on same, are protected by the work product privilege and attorney client privilege which has greater significance given the Husband's threats to file a law suit against Ms. Hodz, the undersigned, and Cortes Hodz Family Law & Mediation, P.A.

22. While the Husband's request for all communications, notes, or memoranda referencing or documenting any statement by Scott Paul Davis indicating an intent to make the litigation "ugly and expensive" or a refusal to cooperate with mandatory financial disclosure appears to be a reasonable request, it is unclear how any such records are relevant to the matters set for hearing on May 29, 2026. Regardless that the request on its face appears to be relevant, no such records exist.

23. Lastly, the Husband seeks Ms. Hodz's complete response and all communications with The Florida Bar concerning The Florida Bar File No. 2026-10,601(13E) (the complaint by Christopher Hanson against you), including all correspondence to or from Bar counsel or staff regarding that file. This request has zero relevance to the matters set for hearing on May 29, 2026. Furthermore, the Husband has copies of all such correspondence as The Florida Bar requires all communications to be provided to the Husband. The Husband's request in this regard is made to annoy, harass, and attempt to embarrass Ms. Hodz.

WHEREFORE, Non-Party, Vivian Cortes Hodz, respectfully requests that this Honorable Court grant this Objection to Subpoena and Motion for Protective Order, enter a Protective Order that Ms. Hodz not be required to testify, enter a Protective Order providing that Ms. Hodz not be required to produce any documents in response to the Husband's

subpoena, enter an order awarding Ms. Hodz her reasonable attorney's fees and costs, and grant such further relief as is deemed just and equitable.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing has been forwarded via e-mail to counsel for the Petitioner/Wife, SCOTT P. DAVIS, ESQ., at scott@hunterlawgroup.com, Kathie@hunterlawgroup.com and service@hunterlawgroup.com and to the Respondent/Husband, CHRISTOPHER A. HANSON, at cahanson77@yahoo.com on this 27th day of May 2026.

/s/ Lawrence J. Hodz

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